

Calendar Lines 5-6**Case Name:** Fang Xia v. Park Townsend Homeowners Association**Case No.:** 25CV460436

At issue are two motions to compel filed by plaintiff Fang Xia: a motion to compel further responses to form interrogatories, set one; and a motion to compel further responses to requests for production, set one. Notice is proper and the motions are opposed by defendant Park Townsend Homeowners Association. The case involves a dispute over liability for damage to commercial property as a result of a water leak from a burst pipe.

Motion to Compel Further Responses to Form Interrogatories, Set One

Plaintiff moved to compel further responses to form interrogatory No. 15.1(A) and (C), which request facts and documents supporting “each denial of a material allegation and each special or affirmative defense.” (Code Civ. Proc., § 2030.300.) Defendant has since supplemented its response to that interrogatory twice. Plaintiff’s reply acknowledges the “Second Amended Responses addressed the issue compelled in this Motion.” The motion is thus DENIED AS MOOT. The parties’ requests for discovery sanctions related to this motion are DENIED.

Motion to Compel Further Responses to Requests For Production, Set One

Plaintiff moved to compel further responses to requests for production, set one, Nos. 1 through 36. (Code Civ. Proc., § 2031.310.) Defendant has since supplemented its responses to those requests for production. The court finds the majority of defendant’s responses are now code-compliant. Plaintiff’s reply argues defendant’s responses are deficient as to the following items responsive to request Nos. 8 through 21: copies of work orders, proposals, and estimates from contractors. (Reply at 4:19-21.) A supplemental declaration by plaintiff’s counsel includes excerpts from e-mail messages apparently produced by defendant in response to the requests for production. One refers to a reconstruction/build back proposal attached to the e-mail, but no proposal was apparently provided to plaintiff. (Jiang dec., 5/27/26, exh. 10.) To the extent defendant has that and other responsive attachments to e-mail messages, those must be produced. The court acknowledges defendant’s contention in its supplemental response that it produced all responsive documents in its possession and that other documents may be in the possession of Grayson Community Management. The court also notes defendant indicated a willingness to subpoena Grayson for any responsive records to facilitate discovery.

The motion to compel is GRANTED IN PART as follows. As to RFP Nos. 8 through 21, defendant must produce any copies in its possession of responsive work orders, proposals, and estimates from contractors. Defendant must further subpoena Grayson Community Management for responsive records, and must produce those records to plaintiff upon receipt.

The parties’ requests for discovery sanctions related to this motion are DENIED.

Order to Submit Other Pending Discovery Disputes to a Discovery Facilitator

The parties have reserved at least seven additional discovery-related motion hearings. The parties are ordered to submit those and all other pending discovery disputes to a discovery facilitator through the Santa Clara County Superior Court Discovery Facilitator Program.

(<https://santaclara.courts.ca.gov/divisions/civil-division/civil-adr-providers/discovery-facilitator-program>) **A stipulation regarding the parties' agreement to participate in that program must be filed no later than July 1, 2026.** The court will consider the parties' good faith participation (or lack thereof) in that process in determining whether to grant discovery sanctions, if those motions are not resolved informally.

The court will prepare the order.

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Calendar Line 7

Case Name: Martin Willerford v. Ford Motor Company et al.

Case No.: 25CV467350

Plaintiff Martin Willerford purchased a 2021 Ford Bronco (Subject Vehicle) in March 2022 from Ken Grody Redlands, LLC dba Ken Grody Ford (erroneously sued as Ken Grody Ford – Redlands; hereafter, Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued Dealership and Ford Motor Company in May 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the FAA governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp 6:28-7:2.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)